

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
TED MARTIZA

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT,
POLICE OFFICER WILLIAM MORRIS, SHIELD #
16924,
INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER BRIAN BENVENUTO,
SHIELD # 23866, INDIVIDUALLY AND AS A
POLICE OFFICER, POLICE OFFICER NICHOLAS
CASTIELLO, SHIELD # 22523, INDIVIDUALLY AND
AS A POLICE OFFICER, POLICE OFFICER KELVIN
OZUNA, SHIELD # 23907, INDIVIDUALLY AND AS A
POLICE OFFICER, SGT MICHAEL ALFIERI, SHIELD #
00800, INDIVIDUALLY AND AS A POLICE OFFICER,

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

Defendants.

-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 29 day of Oct 2015



EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer William Morris #16924
Police Officer Brian Benvenuto #23866
Police Officer Nicholas Castiello # 22523
Police Officer Kelvin Ozuna, #23907
Sgt. Michael Alfieri, #00800
c/o 6th pct.
233 West 10th Street
New York, NY 10014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TED MARTIZA

Plaintiff,

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A POLICE OFFICER, POLICE OFFICER BRIAN
BENVENUTO, SHIELD # 23866, INDIVIDUALLY AND
AS A POLICE OFFICER, , POLICE OFFICER NICHOLAS
CASTIELLO, SHIELD # 22523, INDIVIDUALLY AND
AS A POLICE OFFICER, POLICE OFFICER KELVIN
OZUNA, SHIELD # 23907, INDIVIDUALLY AND AS A
POLICE OFFICER, SGT MICHAEL ALFIERI, SHIELD
#00800, INDIVIDUALLY AND AS A POLICE OFFICER,
Defendants.

-----X

The plaintiff, Ted Martizia, by his attorneys, Emdin & Russell, LLP complaining
of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the
defendant, the City of New York, hereinafter referred to as "City", was, and still is, a municipal
corporation duly organized and existing under, and by virtue of, the laws of the State of New
York.

2. Upon information and belief at all times hereinafter mentioned, the defendant, the
City of New York, hereinafter certified to as "City", its agents, servants and/or employees
operated, maintained and controlled the New York City Police Department hereinafter referred
to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned, and on the 24th

day of January, 2015, Police Officer William Morris, hereinafter referred to as "Morris" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 6th pct, and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief Morris' shield # is 16924.

4. Upon information and belief at all times hereinafter mentioned and on the 24th day of January, 2015, "Morris", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

5. Upon information and belief, at all times hereinafter mentioned, and on the 24th day of January, 2015, Police Officer Brian Benvenuto, hereinafter referred to as "Benvenuto" , was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 6th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield # is 23866.

6. Upon information and belief at all times hereinafter mentioned and on the 24th day of January, 2015, "Benvenuto" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee.

7. Upon information and belief, at all times hereinafter mentioned, and on the 24th day of January, 2015, Police Officer Nicholas Castiello, hereinafter referred to as "Castiello", was/were employed as a Police Officer(s) by the "City" and/or "NYPD" and assigned to the 6th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield # is 22523.

8. Upon information and belief at all times hereinafter mentioned and on the 24th day of January, 2015, "Castiello" was acting within the scope of his employment as a police

officer and under the direction of the "City" as their agent, servant and/or servant.

9. Upon information and belief, at all times hereinafter mentioned, and on the 24th day of January, 2015, Police Officer Kelvin Ozuna, hereinafter referred to as "Ozuna" was employed as a Police Officer(s) by the "City" and/or "NYPD" and assigned to the 6th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield # is 23907.

10. Upon information and belief at all times hereinafter mentioned and on the 24th day of January, 2015, "Ozuna" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant.

11. Upon information and belief, at all times hereinafter mentioned, and on the 24th day of January, 2015, Sgt. Michael Alfieri, hereinafter referred to as "Alfieri" was/ employed as a Police Officer(s) by the "City" and/or "NYPD" and assigned to the 6th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief his shield # is 00800.

12. Upon information and belief at all times hereinafter mentioned and on the 24th day of January, 2015, "Alfieri" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant.

13. Upon information and belief, at all times hereinafter mentioned, and on the 24th day of January, 2015, Morris was the plaintiff's arresting officer.

14. At all relevant times hereunder the plaintiff was a resident of Bronx County, New York.

15. Upon information and belief, on January 24, 2015 Morris, Benvenuto, Castiello,

Ozuna and/or Alfieri, individually and/or collectively were acting under and required to follow the New York City Police Patrol Guidelines, and the Interim Orders of the New York City Police Department. Hereinafter said defendants: Morris, Benvenuto, Castiello, Ozuna and Alfieri, will be collectively referred to as the “officers”.

16. That on January 24, 2015, at approximately 3:30 a.m. the plaintiff was apprehended in the vicinity of 6th Avenue and Thompson Street, in the City, Borough and State of New York, hereinafter referred to as “the location”.

17. Upon information and belief, the plaintiff had run after having spray-painted graffiti on a building. He was chased by the police to “the location”.

18. At said location, the plaintiff stopped running, surrendered himself and was immediately grabbed and violently thrown to the ground by one of the named defendant officers.

19. Upon information and belief two or more of the defendant officers pushed the plaintiff face down to the ground. One officer grabbed the plaintiff’s arms and the other put his knee into the plaintiff’s back. The plaintiff’s arms were grabbed, pulled back and cuffed, while the side of his face was ground into the street by the officer(s).

20. After the plaintiff was handcuffed, two additional officers came to the “location”, with one officer punching the plaintiff in the face and the other kicking him in the body.

21. Officer(s) called the plaintiff a “faggot” and an “asshole”, and other derogatory names at various times after his apprehension.

22. The plaintiff was bleeding from his face, but instead of taking him to the hospital for immediate and necessary medical treatment, the officers transported him to the 6th pct.

23. In route to the precinct the officers were heard congratulating themselves for

“fucking him up”.

24. The plaintiff was treated by EMS at the pct. and transported to Lenox Hill Hospital where he received medical treatment, including upon information and belief stitches.

25. Despite the plaintiff's protests that the handcuffs were too tight, nothing was done to loosen them, causing the plaintiff pain and injury to his wrists.

26. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant “City”.

27. That a 50(h) hearing was held on October 29, 2015.

28. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

29. That this action is commenced within one year and 90 days after the cause of action arose.

30. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

31. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "30" with the same force and affect as if more fully and at

length set forth herein.

32. The plaintiff was grabbed, seized, thrown to the ground, kicked, punched, scraped, and kneed all while not offering any resistance by the defendants.

33. Not one officer present stopped, intervened or mitigated the use of force and/or the use of excessive and/or unnecessary force from occurring.

34. That the plaintiff was also subjected to the purposeful application of handcuffs used too tightly and refusing to loosen them.

35. The plaintiff was subjected to verbal threats, taunts and derogatory language, causing him to fear additional unwelcome physical contact.

36. That all said contact was committed without the plaintiff's permission or consent.

37. That all said contact was unlawful and without privilege.

38. That all contact committed by defendants through their agents, servants, and/or employees, including the named defendant "officers".

39. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff, causing injury to the plaintiff.

40. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF THE PLAINTIFF
FOR NEGLIGENCE

41. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and affect as if more fully and at

length set forth herein.

42. That the defendant, "City" was careless and reckless in hiring, retaining, training, supervising and promoting as and for its employees, the defendant "officers", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendant City in the capacity in which they were utilized, i.e. as supervisors and/or police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.

43. That defendants "officers" while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer(s) would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police dates; in that the police department permitted or condoned the excessive use of force, failure to report misconduct, and/or false documentation submitted by these and other officers; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

44. That the aforesaid occurrence, to wit: assault and battery and the resulting injuries therefrom, were caused wholly and solely by reason of the negligence of the defendant City, its agents, servants and/or employees including the defendant "officers" without any negligence on

the part of the plaintiff contributing thereto.

45. That by reason of the aforesaid, the plaintiff was physically injured and he was thereby damaged.

46. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A THIRD, FOURTH AND FIFTH CAUSES OF ACTION:
ALLEGING VIOLATIONS OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY "MORRIS" "BENVENUTO", "CASTIELLO"
"OZUNA", AND/OR "ALFIERI" IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS, SERVANTS, AND/OR EMPLOYEES OF THE CITY OF NEW
YORK, FOR EXCESSIVE USE OF FORCE AND FAILURE TO INTERVENE, AND
FOR FAILING TO SECURE PROMPT AND NECESSARY MEDICAL ATTENTION,
THE PLAINTIFF ALLEGES:

47. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "46" with the same force and effect as if more fully and at length set forth herein.

48. That at all times hereinafter mentioned, the defendant "Morris" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

49. That at all times hereinafter mentioned, the defendant "Benvenuto" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

50. That at all times hereinafter mentioned, the defendant "Castiello" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

51. That at all times hereinafter mentioned, the defendant "Ozuna" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

52. That at all times hereinafter mentioned, the defendant "Alfieri" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

53. That at all times hereinafter mentioned, defendants Morris, Benvenuto, Castiello, Ozuna and/or Alfieri, individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

54. That during all times hereinafter mentioned, the "officers", individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983.

55. That the unlawful and illegal conduct of defendant “officers” deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

The right of plaintiff to be secure in his person and effects against excessive and/or unreasonable use of force under the Fourth and Fourteenth Amendments to the Constitution of the United States.

The right to be free of cruel and inhuman treatment.

The right to necessary and immediate medical attention

56. That the plaintiff was arrested and accused of a non-violent crime; that he did not resist arrest when apprehended; that he did not pose a threat to the officers’ safety; and he was assaulted and battered while in handcuffs by the named defendant “officers”, and that said use of force was excessive and unnecessary and beyond all means necessary to bring the plaintiff to custody and violated his rights under the 4th and 14th Amendments.

57. That the defendant “officers” were present when their fellow officer engaged in excessive and unnecessary use of force, and despite possessing the ability to stop, prevent or mitigate the same from happening, they failed to do so, and permitted the assault and batter of the plaintiff’s person to occur to the physical injury of the plaintiff, in violation of the plaintiff’s rights under the 4th and 14th Amendments.

58. That the failure to obtain prompt and necessary medical attention for the plaintiff, violated his rights under the 5th and 14th Amendments.

59. That by reason of the aforesaid violations, i.e the use of excessive and unnecessary force, the assault and battery of the plaintiff; the failure to obtain immediate medical

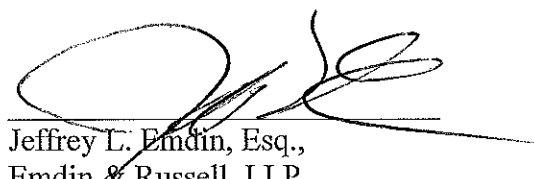
attention; the failure to intervene, stop and mitigate the excessive use of force, the defendant "officers", individually and collectively violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendants violated 42 U.S.C. §1983.

60. That by reason of the aforesaid, plaintiff was injured and damaged.

61. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such other and further relief as to the Court seems just and proper on the First through the Fifth causes of action.

DATED: New York, New York
October 24, 2015



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

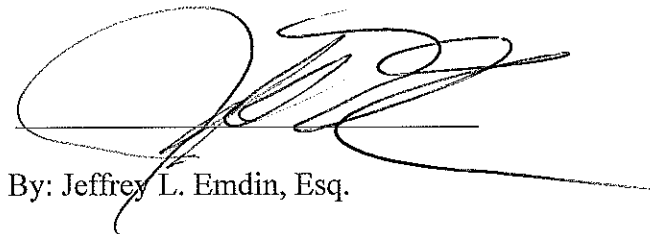
That I am an attorney associated with the law firm of Jeffrey L. Emdin, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
October 21, 2015


By: Jeffrey L. Emdin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TED MARTIZA

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER WILLIAM MORRIS, SHIELD # 16924, INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER BRIAN BENVENUTO, SHIELD # 23866, INDIVIDUALLY
AND AS A POLICE OFFICER, POLICE OFFICER NICHOLAS CASTIELLO, SHIELD #
22523, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER KELVIN
OZUNA, SHIELD # 23907, INDIVIDUALLY AND AS A POLICE OFFICER, SGT.
MICHAEL ALFIERI, SHIELD #00800, INDIVIDUALLY AND AS A POLICE OFFICER,
Defendants .

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N

New York, NY 10018

(212) 683-3995

To:

Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

P. O. William Morris
Shield #16924
c/o 6th pct.

P. O. Brian Benvenuto
Shield #23866
c/o 6th pct.

P. O. Nicholas Castiello
Shield # 22523
c/o 6th pct.

P. O. Kelvin Ozuna
Shield #23907
c/o 6th pct.

Sgt. Michael Alfieri
Shield # 00800
c/o 6th pct.

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New
York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained
in the annexed document are not frivolous.

Dated: October 14, 2015

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- [] NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- [] NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on